

November 19, 2014



U.S. Department  
of Transportation

East Building, PHH – 30  
1200 New Jersey Avenue, Southeast  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 16142

EXPIRATION DATE: September 30, 2016

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Nantong CIMC Tank Equipment Co. Ltd.  
Jiangsu, Province, China  
(US Agent: The Columbiana Boiler Company, LLC  
Columbiana, OH)
2. PURPOSE AND LIMITATIONS:
  - a. This special permit authorizes the manufacture, marking, sale and use of UN T75 Code portable tanks that are designed, constructed, certified and stamped in accordance with Section VIII Division 1, latest edition, of ASME Code, except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 178.274(b) and 178.277(b)(1), in that tanks are designed, constructed, certified and stamped in accordance with Section VIII, Division 1, latest edition and addenda of the ASME Code.

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5. BASIS: This special permit is based on the application of Nantong CIMC Tank Equipment Co. Ltd. dated April 4, 2014, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| <b>Hazardous Material Description</b>                                                        |                               |                              |                      |
|----------------------------------------------------------------------------------------------|-------------------------------|------------------------------|----------------------|
| <b>Proper Shipping Name</b>                                                                  | <b>Hazard Class/ Division</b> | <b>Identification Number</b> | <b>Packing Group</b> |
| Division 2.1 and 2.2 materials authorized for UN portable tanks (see PORTABLE TANK CODE T75) | 2.1<br>2.2                    | As Appropriate               | N/A                  |

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

1. Packaging prescribed is a UN portable tank conforming to the requirements of § 172.102(c) (7) PORTABLE TANK CODE T75 which are designed, constructed, certified and stamped in accordance with Section VIII, Division 1 of the ASME Code (latest edition), with a design margin of 3.5:1, including all applicable ASME Code Cases. The portable tank is vacuum insulated and is enclosed in an ISO frame. Each portable tank must be constructed in accordance with the manufacturer's drawings, specifications and calculations on file with the Approvals and Permits Division (APD).

2. Tank capacity and pressure: the design criteria for the inner tank are as follows:

|                              |                            |
|------------------------------|----------------------------|
| Design pressure (See Note 1) | 4.83 bar (70 psig)         |
| Water capacity               | 45,000 liters (11888 USWG) |

Note 1: The design pressure means the "Maximum Allowable Working Pressure" as used in the ASME Code.

3. Maximum Gross Weight: 34,000Kg (74,957 lbs)

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4. G-Loading: Vertical down -2; Vertical up -2;  
Longitudinal - 2; Transverse -2

5. Insulation: The tanks must be insulated with super insulation in a vacuum, protected by a steel outer jacket.

6. Baffles: Two (Optional).

b. TESTING -

(1) Hydrostatic test certificates for each tank must be maintained by the owner and made available upon request to any representative of DOT.

(2) A test report documenting a satisfactory ISO prototype test for each tank design must be on file with APD prior to the first shipment.

(3) Each tank must be inspected and tested as specified in § 180.605(c) (1) for UN portable tanks.

c. OPERATIONAL CONTROLS -

(1) Each portable tank must be filled by weight.

(2) Each tank must be visually inspected prior to shipment to ensure that it has not been damaged during loading.

d. MARKING -

(1) Each portable tank must be marked "AA" Alternative Arrangement as required by §§ 178.274(a)(2) and 178.274(i).

(2) In addition to markings specified in § 178.274(i), each portable tank must be plainly marked on both sides near the middle, in letters and numerals at least two inches high on a contrasting background, "DOT-SP 16142".

(3) Prior to use of any portable tank under the terms of this Special permit in Offshore service, additional information must be submitted to and acknowledged in writing by the AAHMS that the tanks have been designed, constructed and tested to the Guidelines for the

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Approval of Containers Handled in Open Seas specified in the IMDG Code. Tanks meeting this additional criteria shall be marked "OFFSHORE portable tanks" as required by § 178.274(i)(3).

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle, Cargo Vessel, and Rail Freight.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this special permit.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials

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incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm) Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PTO: Staniszewski:dl